

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eva Vaillancourt	Team: Team # 4	CCRB Case #: 201301298	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 02/19/2013 6:00 PM	Location of Incident: § 87(2)(b)	Precinct: 30	18 Mo. SOL 8/19/2014	EO SOL 8/19/2014	
Date/Time CV Reported Thu, 02/28/2013 11:46 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 02/28/2013 11:46 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Steven Moran	02932	947275	030 PCT
2. POM Paul Abraham	15327	927824	030 PCT
3. An officer			030 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Paul Abraham	Abuse: PO Paul Abraham entered § 87(2)(b) in Manhattan.	
B.POM Steven Moran	Abuse: PO Steven Moran entered § 87(2)(b) in Manhattan.	
C.POM Paul Abraham	Force: PO Paul Abraham forcibly removed § 87(2)(b) to a hospital.	
D.POM Steven Moran	Force: PO Steven Moran forcibly removed § 87(2)(b) to a hospital.	
E. An officer	Abuse: An officer threatened to arrest § 87(2)(b)	

Case Summary

On February 28, 2013, § 87(2)(b) filed this complaint with the CCRB, via the Call Processing System. He provided a phone statement on March 26, 2013.

On February 18, 2013, § 87(2)(b) called the police to report stolen car keys. Several unidentified officers responded to his home at § 87(2)(b), in Manhattan. They performed a cursory investigation, determined that § 87(2)(b) had lost his keys, and took a lost-property report. On February 19, 2013, at around 2:00 p.m., § 87(2)(b) called the police to report his stolen keys again. Officers told him he had no evidence to suggest that the keys had been stolen, and that a lost property report was all he could file. Later, § 87(2)(b) called the police for the second time that day. Two officers, identified by § 87(2)(b) as PO Abraham and PO Moran, responded in patrol car 3071, but did not take a report. These officers were identified by the investigation as PO Paul Abraham and PO Steven Moran, of the 30th Precinct. The officers would not allow § 87(2)(b) to get close enough to read their badge numbers. After they left, § 87(2)(b) called the police for a third time, asking for a supervisor. A female sergeant (PO1) responded with her partner, whom § 87(2)(b) identified as PO Dennis. This officer was identified by the investigation as PO Brian Dennis of the 30th Precinct. The officers refused to take a report regarding the stolen keys. They left, and § 87(2)(b) called IAB to complain about the aggressive tone with which PO Dennis had spoken to him. § 87(2)(b) then followed the officers outside the building and asked them again to take his report, saying he was just going to call 911 again. PO Dennis then informed § 87(2)(b) that if he kept calling the police, he could be arrested. Undeterred, § 87(2)(b) called the police for a fourth time that day, asking for a supervisor. At approximately 6:00 p.m., PO Abraham and PO Moran arrived and encountered § 87(2)(b) in the hallway of his building. § 87(2)(b) said, "I didn't call you guys, I asked for a supervisor." The officers told him that a supervisor would not be coming. As § 87(2)(b) moved toward the officers to look at their name-plates and badge numbers, the officers began to crowd § 87(2)(b) blocking his movement. § 87(2)(b) perceived these actions as threatening and retreated to his apartment. The officers pursued him. § 87(2)(b) told them not to cross the threshold. Both officers then entered the apartment (**Allegations A and B**). Once inside, they handcuffed § 87(2)(b) and removed him to a hospital (**Allegations C and D**). § 87(2)(b) acknowledged that, while in the hospital, he began to "freak out" at the prospect of being drugged. One of the officers then told § 87(2)(b) that if he left the hospital, he would be arrested (**Allegation E**). § 87(2)(b) was forcibly strapped to a hospital bed and medicated. He woke up the next morning and left the hospital. A search of BADS confirmed that § 87(2)(b) was not arrested on February 18, 2013, nor were any arrests made at § 87(2)(b) on that day.

§ 87(2)(b) did not explain how he obtained the officers' names or vehicle number. However, ARCS confirmed that PO Abraham and PO Moran were working Sector C in the 30th Precinct at the time of the incident. The SPRINT printout for § 87(2)(b)'s 911 calls showed that they responded to his location and called EMS. § 87(2)(g)

Between March 1 and March 22, 2013, the investigator called § 87(2)(b) five times, leaving four messages on his answering machine, and once reaching § 87(2)(b) who said she would ask § 87(2)(b) to call. On March 4, 2013, the investigator sent § 87(2)(b) a please-call letter. On March 26, 2013, § 87(2)(b) contacted the investigator, provided a phone statement, and scheduled an interview for April 2, 2013. § 87(2)(b) did appear on that day, but elected not to give a statement until he had spoken with his lawyer. He rescheduled his interview for April 9, 2013, and did not appear. § 87(2)(b) did not call to cancel or reschedule his appointment. The investigator called § 87(2)(b) left a message, and sent him a missed-

appointment letter on April 10, 2013. Neither of the letters sent to his address were returned by the U.S. Postal Service. A search of the New York City Department of Correction inmate locator services website confirmed that § 87(2)(b) is not incarcerated, as did a search of the New York State DOC website.

§ 87(2)(g)
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Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date